

26STCV06104 26STCV06104

County: los-angeles

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Case Number: 26STCV06104 Hearing Date: September 16, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

NDRBuilds, inc.,

Plaintiff,

vs.

mrاد investment, llc, et al.,

Defendants.

Case No.:

26STCV06104

Hearing Date:

September 16, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT MRAD

INVESTMENT, LLC'S MOTION TO EXPUNGE MECHANIC'S LIEN

Background

On December 30, 2021, Plaintiff

NDRBuild, Inc. ("NDR") entered into construction contract with Defendant MRAD

Investment, LLC ("MRAD") pursuant to which MRAD engaged NDR to construct a

12,720 square foot residential complex. NDR

alleges MRAD failed to pay for the work performed on the project. NDR alleges MRAD is in default under the construction contract in the amount of \$334,055.57.

On February 25, 2026, Plaintiff NDR

filed a complaint against MRAD alleging a single cause of action for foreclosure of mechanic's lien.

On March 12, 2026, MRAD filed a

cross-complaint against NDR and Hudson Insurance Company alleging (1) breach of contract; (2) negligence; (3) breach of warranty; and (4) recovery on license bond.

On April 8, 2026, MRAD filed a Motion

to Expunge Mechanic's Lien (Lambert Motion).

No opposition or reply has been filed.

Legal Standard

The common law recognizes a motion to

"remove" an improper mechanic's lien, otherwise known as a "Lambert" motion. Existing authority clearly holds

that a motion to expunge or remove a mechanic's lien is procedurally

appropriate and that the expungement procedure under CC §8424

is merely one of several potential methods by which an owner could obtain speedy expungement of a mechanic's lien.

(Lambert v. Supr. Ct. (1991) 228

Cal.App.3d 383, 387 ("But where a claimant has already brought an action to foreclose a lien, the owner may more easily file a motion in the pending action.").) "A motion to remove a

mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien." (Howard S. Wright Construction Co. v. Supr. Ct. (2003) 106 Cal.App.4th 314, 318.)

"In Lambert, the Court of Appeal established a further procedural safeguard for owners subject to an unjustified mechanic's lien or stop notice. Where a claimant has not yet recorded a lien or stop notice or has not yet sued to foreclose, the owner still has available the remedies laid out in Connolly. But where the lien claimant has already filed suit to foreclose the lien, a more expeditious remedy would be for the owner to file a motion in that action. In such motion, the question presented is not the ultimate merit of the contractor's claim but whether the contractor should be entitled to retain the security of the mechanic's lien or stop notice pending resolution of the matter." (Cal Sierra Construction, Inc. v. Comerica Bank (2012) 206 Cal.App.4th 841, 850 (citing Lambert, supra, 228 Cal.App.3d at 387))(lender could not bring a Lambert motion in contractor's action to foreclose mechanic's lien; Lambert motion may only be brought by owner.)

The inquiry undertaken by a trial court on a motion to remove an improper mechanic's lien is the same as that applied to a motion to expunge lis pendens. (Howard S. Wright Construction, supra, 106 Cal.App.4th at 318 ("The inquiry upon such motion is likewise limited to the 'probable validity' of the lien."); Lambert, supra, 228 Cal.App.3d at 387.) Thus, "[i]n such motion, the issue presented is limited to the 'probable validity' of the lien or stop notice. [Citation.] The task of a reviewing court is, in turn, to ensure that the trial court's factual determinations are supported by substantial evidence." (Cal Sierra Construction, Inc., supra, 206 Cal.App.4th at 850.)

"The Legislature's intent...was to make the standard on a motion to expunge a notice of lis pendens equivalent to the probable validity standard applicable under the attachment law (Code of Civil Procedure section 484.090) and other provisions for pretrial judicial evaluation (e.g., Code of Civil Procedure section 512.060 (writ of possession); Code Civ. Proc., § 564 [appointment of receiver]; Corp.Code, § 800, subd. (c)(1) [shareholder derivative action])). That is, the plaintiff must at least establish a prima facie case. If the defendant makes an appearance, the

court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Howard S. Wright Construction, supra, 106 Cal.App.4th at 319.)

On a Lambert motion, “the claimant bears the burden of establishing the probable validity of the claim underlying the lien or stop notice. If the claimant fails to meet that burden, the lien and stop notice may be released in whole or in part. We refer to this procedure as a “Lambert motion.” (Cal-Sierra Construction, Inc., supra, 206 Cal.App.4th at 845.)

The court has the power to determine disputed facts on the basis of a preponderance of the evidence as disclosed in the affidavits and declarations (unlike summary judgment motions, for example, in which the court has no power to weigh the evidence). (Hobbs v. Weiss (1999) 73 Cal. App.4th 76, 80 (court must “consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation”).) The trial court is not required to accept as true the sworn testimony of any witness or undisputed affidavit testimony. It may make contrary findings based on inferences drawn from other evidence. (Bank of America v. Salinas Nissan (1989) 207 Cal.App.3d 260, 273.)

As noted by Howard S. Wright Construction, unlike a motion to expunge lis pendens or a writ of attachment, a motion to expunge or remove a mechanic’s lien results in a final judgment, as in a summary judgment and SLAPP. (Howard S. Wright Construction Co., supra, 106 Cal.App.4th at 318.) “However, unlike the grant of a motion to expunge the notice of lis pendens, the grant of a motion to remove a mechanic’s lien is essentially a judgment on the underlying foreclosure action that no lien exists—a judgment that, upon recordation, removes the lien from the public records.” (Howard S. Wright Construction Co., supra, 106 Cal.App.4th at 318.) For this reason, a valid argument can be made that the “probable validity” showing on a motion to expunge a mechanic’s lien should be akin to that required on a SLAPP motion or a summary judgment motion. Under SLAPP and summary judgment, the Court must deny if there is a question of fact and it is precluded from weighing the

evidence.

Discussion

As the lien claimant, Plaintiff NDR has the initial burden of establishing that its lien has probable validity. (Cal-Sierra Construction, Inc., supra, 206 Cal.App.4th at 845; Howard S. Wright Construction, supra, 106 Cal.App.4th at 319.) NDR did not file an opposition establishing the probable validity of its lien claim. As such, MRAD's motion to expunge is granted.

Conclusion

MRAD's Motion to Expunge Mechanic's Lien (Lambert Motion) is GRANTED. MRAD is ordered to file and serve a proposed judgment expunging the mechanic's lien and dismissing the action within 10 days of the date of this Order.

MRAD is ordered to provide notice of this Order.

DATED: September 16, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court